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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

Name: Anonymous Anonymous

Email: [REDACTED]

General Comment

Subject: AI Action Plan

I am responding on my own personal behalf to the Request for Information on the Development of an Artificial Intelligence (AI) Action Plan, not as an agent or representative of any institution.

Per the requirements of the RFI response I am stating the following:

This document is approved for public dissemination. The document contains no business-proprietary or confidential information.

Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

While AI may prove to be a useful tool in the future, American success to-date has been based on many factors, including our large population of creative people who work across all the arts and sciences. Those people's work is valuable and should not be taken and used without compensation. Current large language models (LLM) have been developed using scraped or pirated data from many sources. The companies developing these LLM are not just taking people's intellectual property without compensation, they are attempting to reverse engineer the thought processes that people put into creating new works with the expressed intent to replace those people in part or entirely in some cases.

First, AI developers must be required to ask permission to include people's work in their model's development. Creators should not have to opt-out; they should be invited to opt-in with compensation.

Second, automated data collection (also known as scraping) must be required to respect requests to not collect data from websites that post such requests.

Third, any data collected by the developer must be anonymized and encrypted while stored, to protect the creators' privacy.

Fourth, AI developers should be charged a surcharge for the electricity and cooling water consumed, along with a charge for the added pollution from the electricity generation. They should be required to follow all environmental requirements for construction and operation of data centers.

Finally, AI models should be treated as potential dual-use technologies and subject to export control (EC) laws and international traffic in arms regulations (ITAR) and thus, review by the Department of Commerce and Department of Defense.